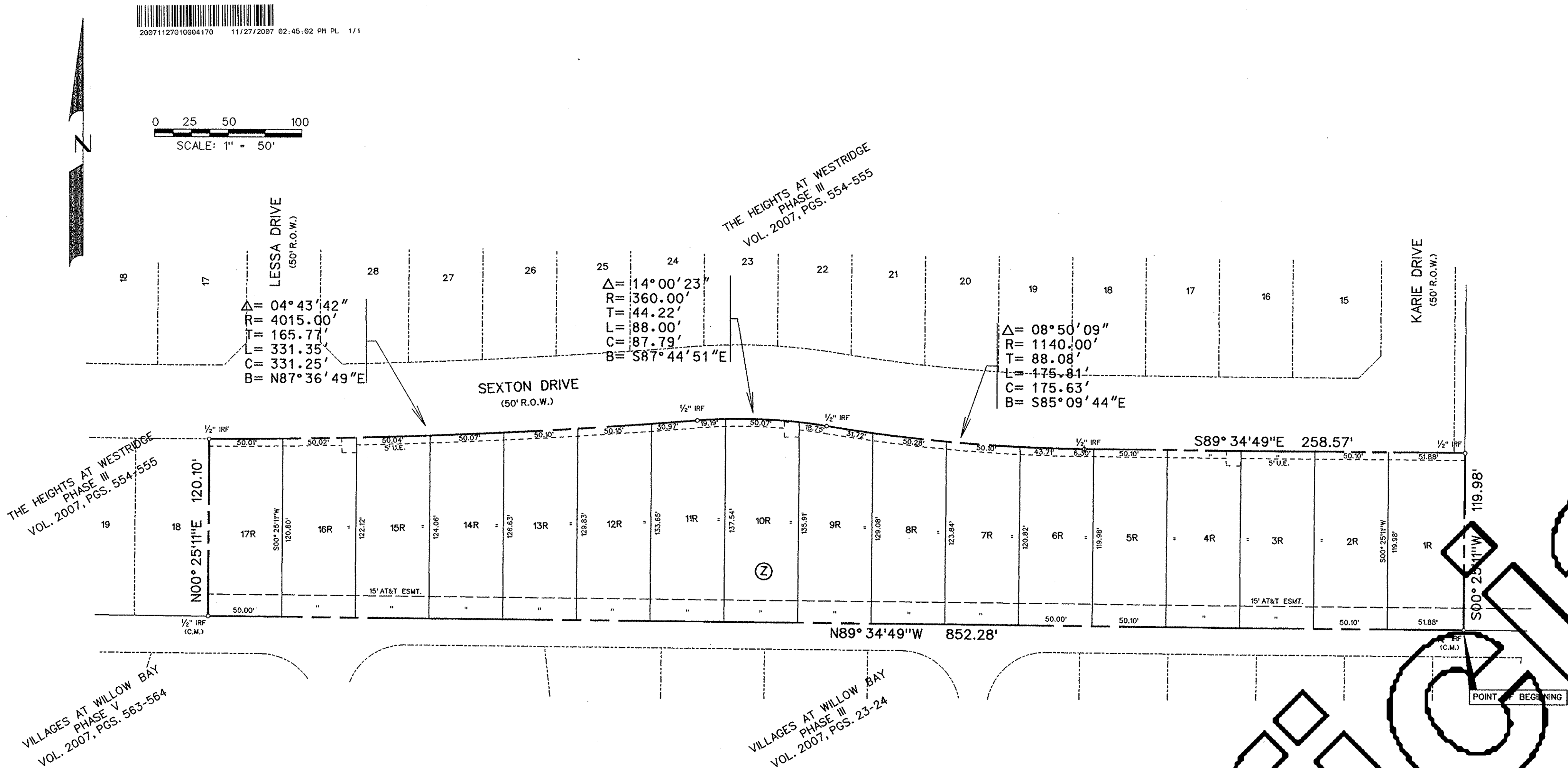




NOW, THEREFORE, KNOW ALL MEN BY THESE PRESENTS:

THAT we the undersigned do hereby adopt this plat designating the herein described property as "LOTS 1R-17R BLOCK Z", out of The Heights at Westridge Phase III, an addition to the City of McKinney, Collin County, Texas, and do hereby dedicate to the public use forever the streets, alleys and public use areas shown hereon. The easements, as shown, are hereby dedicated for the purpose as indicated. The Utility and Drainage Easements being hereby dedicated for the mutual use and accommodation of the City of McKinney and all public utilities desiring to use or using same. All and any public utility and the City of McKinney shall have the right to remove and keep removed all parts of any buildings, fences, trees, shrubs or other improvements or growths, which in any way endanger, or interfere with the construction, maintenance or efficiency of its respective systems on said Easements, and the City of McKinney and all public utilities shall, at all times, have the full right of ingress and egress to or from and upon said easements for the purpose of constructing, reconstructing, inspecting, patrolling, maintaining, and adding to or removing all or part of its respective system without the necessity, at any time, of procuring the permission of anyone. This plat approved subject to all plotting ordinances, rules, regulations, and resolutions of the City of McKinney, Texas.

WITNESS MY HAND AT DALLAS Texas, this the 13 day of NOV, 2007.

CUSTER WEST PARTNERS IV, L.P.

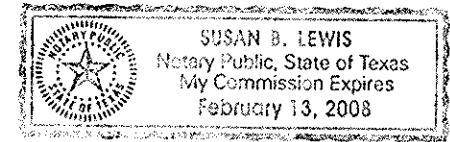
Gabriel Ben-Abraham
Gabriel Ben-Abraham
Authorized Representative

STATE OF TEXAS
COUNTY OF

Before me, the undersigned, a Notary Public in and for said County and State, on this day personally appeared GABRIEL BEN-ABRAHAM, known to me to be the person whose name is subscribed to the foregoing instrument and acknowledged to me that he executed same for the purpose and consideration therein expressed.

Given under my hand and seal of office, this 13 day of NOV, 2007.

Susan B. Lewis
Notary Public in and for the State of Texas



"Approved and Accepted"

Brian Whitfield
Mayor
City of McKinney

11-16-07
Date

LEGAL DESCRIPTION

WHEREAS, CUSTER WEST PARTNERS IV, L.P., is the owner of a tract of land situated in the John Cox Survey, Abstract No. 160, in the City of McKinney, Collin County, Texas, being all of Lots 1-17 Block Z out of The Heights at Westridge Phase III, an addition to the City of McKinney, as described in Volume 2007, Pages 554-555, in the Map Records of Collin County, Texas, and being more particularly described as follows:

BEGINNING, at a 1/2 inch iron rod found at the most southerly southeast corner of said The Heights at Westridge Phase III, being the southeast corner of said Lot 1;

THENCE, North $89^\circ 34' 49''$ West, along said south line of The Heights at Westridge Phase III, for a distance of 852.28 feet, to a 1/2 inch iron rod found at the southwest corner of said Lot 17;

THENCE, North $00^\circ 25' 11''$ East, departing the south line of said Phase III and along the west line of Lot 17, for a distance of 120.10 feet, to a 1/2 inch iron rod found at the northwest corner of Lot 17 being in the south line of Sexton Drive (50' R.O.W.) on a curve to the left, having a radius of 4015.00 feet, a central angle of $04^\circ 43' 42''$, and a tangent of 165.77 feet;

THENCE, along the south line of said Sexton Drive and with said curve to the left for an arc distance of 331.35 feet (Chord Bearing North $87^\circ 36' 49''$ East - 331.25 feet), to a 1/2 inch iron rod found at the point of reverse curvature of a curve to the right, having a radius of 330.00 feet, a central angle of $14^\circ 00' 23''$ and a tangent of 44.22 feet;

THENCE, continuing along said south line and with said curve to the right for an arc distance of 88.00 feet (Chord Bearing South $87^\circ 44' 51''$ East - 87.79 feet), to a 1/2 inch iron rod found at the point of reverse curvature of a curve to the left, having a radius of 1140.00 feet, a central angle of $08^\circ 50' 09''$, and a tangent of 88.08 feet;

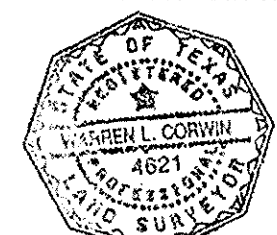
THENCE, continuing along said south line and with said curve to the left for an arc distance of 175.63 feet (Chord Bearing South $85^\circ 09' 44''$ East - 175.63 feet), to a 1/2 inch iron rod set at the point of tangency;

THENCE, South $89^\circ 34' 49''$ East, continuing along said line at 258.57 feet passing the intersection of the south line of said Sexton Drive and the east line of Karie Drive (50' R.O.W.), and continuing for a total distance of 258.57 feet, to a 1/2 inch iron rod found at the northeast corner of said Lot 1;

THENCE, South $00^\circ 25' 11''$ West, along the east line of said Lot 1, for a distance of 119.98 feet, to the POINT OF BEGINNING and containing 2.444 acres of land.

SURVEYOR'S CERTIFICATE

KNOW ALL MEN BY THESE PRESENTS that I, WARREN L. CORWIN, do hereby certify that I prepared this Plat and the field notes from an actual and accurate survey of the land, that the corner monuments shown thereon were properly placed under my personal supervision in accordance with the subdivision Regulations of the City of McKinney, Texas.

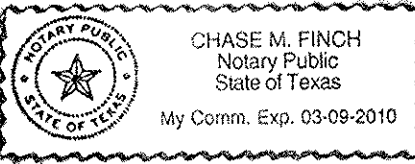


Warren L. Corwin
WARREN L. CORWIN
R.P.L.S. No. 4621

THE STATE OF TEXAS
COUNTY OF COLLIN

Before me, the undersigned, a Notary Public in and for the State of Texas, on this day personally appeared WARREN L. CORWIN, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed same for the purpose and consideration therein expressed.

Given under my hand and seal of office, this 12 day of NOV, 2007.



NOTARY PUBLIC, STATE OF TEXAS

NOTE:

The purpose of this amending is to add the 15' AT&T Easement to the rear of Lots 1-17 Block Z.

AMENDING PLAT
OF

LOTS 1R-17R BLOCK Z

BEING A REPLAT OF

LOTS 1-17 BLOCK Z

OF

THE HEIGHTS AT WESTRIDGE PHASE III

OUT OF THE

JOHN COX SURVEY, ABSTRACT NO. 160

IN THE

CITY OF MCKINNEY

COLLIN COUNTY, TEXAS

OWNER

CUSTER WEST PARTNERS IV, L.P.

8235 DOUGLAS AVE., SUITE 650

DALLAS, TEXAS 75225

214-691-6991

PREPARED BY

CORWIN ENGINEERING, INC.

200 W. BELMONT, SUITE E

ALLEN, TEXAS 75013

972-396-1200

OCTOBER 2007

SCALE: 1"=50'

NOTES

- Bearing are referenced to The Heights at Westridge Phase III, as recorded in Volume 2007 Pages 554-555, in the Plat Records of Collin County, Texas.
- All lot lines are radial or perpendicular to the street unless otherwise noted by bearing.
- 1/2" iron rods with "CORWIN ENGR. INC." caps set at all boundary corners, block corners, points of curvature, points of tangency, and angle points in public right-of-way unless otherwise noted.
- Indicates 10'x10' Electric Easement.
- U.E. - Utility Easement
C.M. - Controlling Monument
- All lots comply with the minimum standards as set forth within the zoning district.

Filed and Recorded
Official Public Records
Stacy Kemp
Collin County, TEXAS
11/27/2007 02:45:02 PM
\$21.00 FEE
20071127010004170



2007-639
Stacy Kemp

11/15/07
SHE

KENNETH L. MAUN
TAX ASSESSOR COLLECTOR
COLLIN COUNTY
1800 N. GRAVES STREET STE 170
P.O. BOX 8046
MCKINNEY TEXAS 75070-8046
972-547-5020
METRO 972-424-1460 EXT. 5020

TAX CERTIFICATE

FEE 10.00

ACCOUNT: R-8091-000-0000-1

CERTIFICATE NUMBER: 23,732

OWNER NAME & ADDRESS
CUSTER WEST PARTNERS IV LP
5000 QUORUM DR STE 375
DALLAS TX 75254-7091

LEGAL DESCRIPTION
PARCELS 1201-1209, 1216 &
1217 BLK 0 LOT 0 138.275
ACRES

JUR# CMC, GCN, JCN, SPR, CAD
138.2750 ACRES

SITUS:

Y E A R	J U N I S	BASE TAX	IF PAID IN NOVEMBER 2007		IF PAID IN DECEMBER 2007		IF PAID IN JANUARY 2008	
			PENALTY & INTEREST	TOTAL DUE	PENALTY & INTEREST	TOTAL DUE	PENALTY & INTEREST	TOTAL DUE
2007	01	56.91		56.91		56.91		56.91
2007	14	136.01		136.01		136.01		136.01
2007	60	20.21		20.21		20.21		20.21
TOTAL AMOUNT DUE				213.13		213.13		213.13

JURIS = TAXING ENTITY CODES:
01 COLLIN COUNTY 14 MCKINNEY CITY 60 JR COLLEGE

THE 2007 TAXES: 213.13 NOT PAID
CURRENT TAX ROLL MARKET VALUE: 23,230

THIS IS TO CERTIFY THAT AFTER A CAREFUL CHECK OF THE TAX RECORDS,
ALL TAXES DUE THE TAX ASSESSOR COLLECTOR OF COLLIN COUNTY ON THE
ABOVE DESCRIBED PROPERTY HAVE BEEN PAID UP TO AND INCLUDING 2007
WITH THE ABOVE LISTED EXCEPTIONS.

ISSUED TO - CUSTER WEST PARTNERS IV, LP FIDO CODE - 345276

AUTHORIZED AGENT: KENNETH L. MAUN TAX ASSESSOR COLLECTOR OF COLLIN COUNTY

SIGNED BY: *Kenneth L. Maun*

DATE: 11/15/07

THIS CERTIFICATE DOES NOT CLEAR ABUSE OF GRANTED EXEMPTIONS AS DEFINED
IN SECTION 11.43 PARAGRAPH (I) OF THE TEXAS PROPERTY TAX CODE.

IF THE ABOVE-DESCRIBED PROPERTY HAS RECEIVED SPECIAL VALUATION BASED ON
THE USE VALUE, ADDITIONAL ROLLBACK TAXES MAY BECOME DUE BASED ON THE
PROVISIONS OF THE SPECIAL VALUATION. SPTB RULE 155.40 (B) PARAGRAPH 6.

Unofficial

Filed and Recorded
Official Public Records
Stacey Kemp
Collin County, TEXAS
11/27/2007 02:45:02 PM
\$21.00 TFOSTER
20071127010004170

2007-639



Stacey Kemp

TAX CERTIFICATE
NO: 0005385

Page: 1

Collecting Office: Frisco I.S.D.
6948 MAPLE ST.
PO BOX 547
Frisco, TX 75034

Collecting Taxes For: Frisco I.S.D.

PROPERTY OWNER
CUSTER WEST PARTNERS IV LP

5000 QUORUM DR STE 375
DALLAS, TX 75254-7091

PROPERTY DESCRIPTION
0000000
PARCELS 1201-1209, 1216 & 1217
BLK 9 LOT 0 138.275 ACRES

ACRES: 138.2750

STATUS: -

Property Account Number: 002605644

PIDN: 8091-000-0000-1 002605644

This is to certify that after a careful check of the tax records of this office, the following delinquent taxes, penalties and interest are due on the described property for this taxing unit.

Year	Taxing			Delinquent Taxes,
Delinquent	Unit	Type	Base Tax Due	Penalties & Interest

TOTAL DELINQUENT: \$ 0.00

* * * * * CURRENT YEAR TAXES * * * * *

YEAR	ENTITY	TYPE	NET VALUE	BASE LEVY	AMOUNT PAID	AMOUNT DUE
2007	905		23,230	313.60	0.00	313.60
TOTAL DUE:						\$ 313.60

(if applicable) The above property has/is receiving special valuation based on its use, and additional rollback taxes may become due based on the provisions of the special valuation.

Laura Boatright CTA
Signature Of Authorized Officer

NOVEMBER 14, 2007
Date of Tax Certificate

Unofficial

Filed and Recorded
Official Public Records
Stacey Kemp
Collin County, TEXAS
11/27/2007 02:45:02 PM
\$21.00 TFOSTER
20071127010004170

2007-639



Stacey Kemp